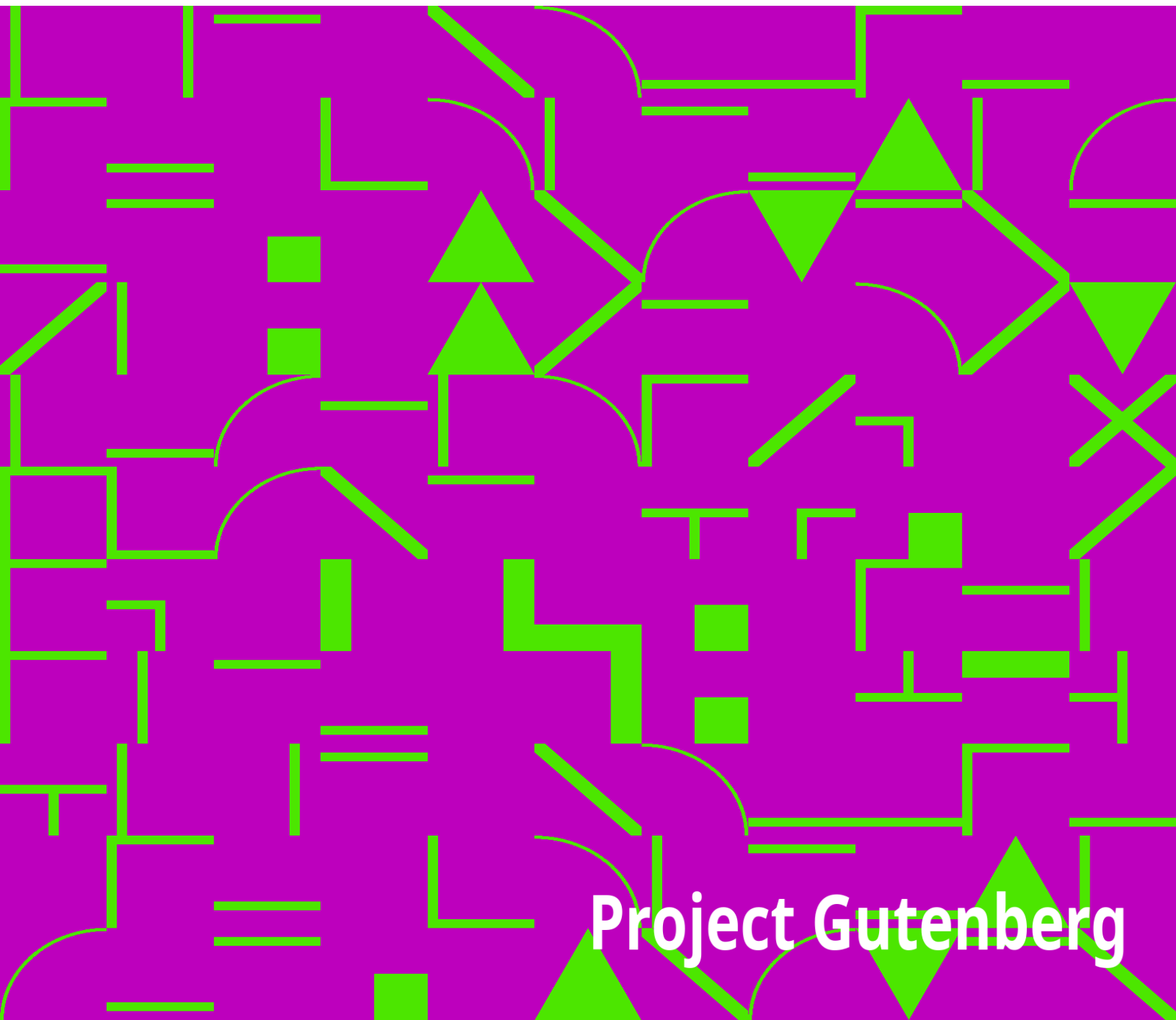


The Mirror of Literature, Amusement, and Instruction. Volume 20, No. 569, October 6, 1832

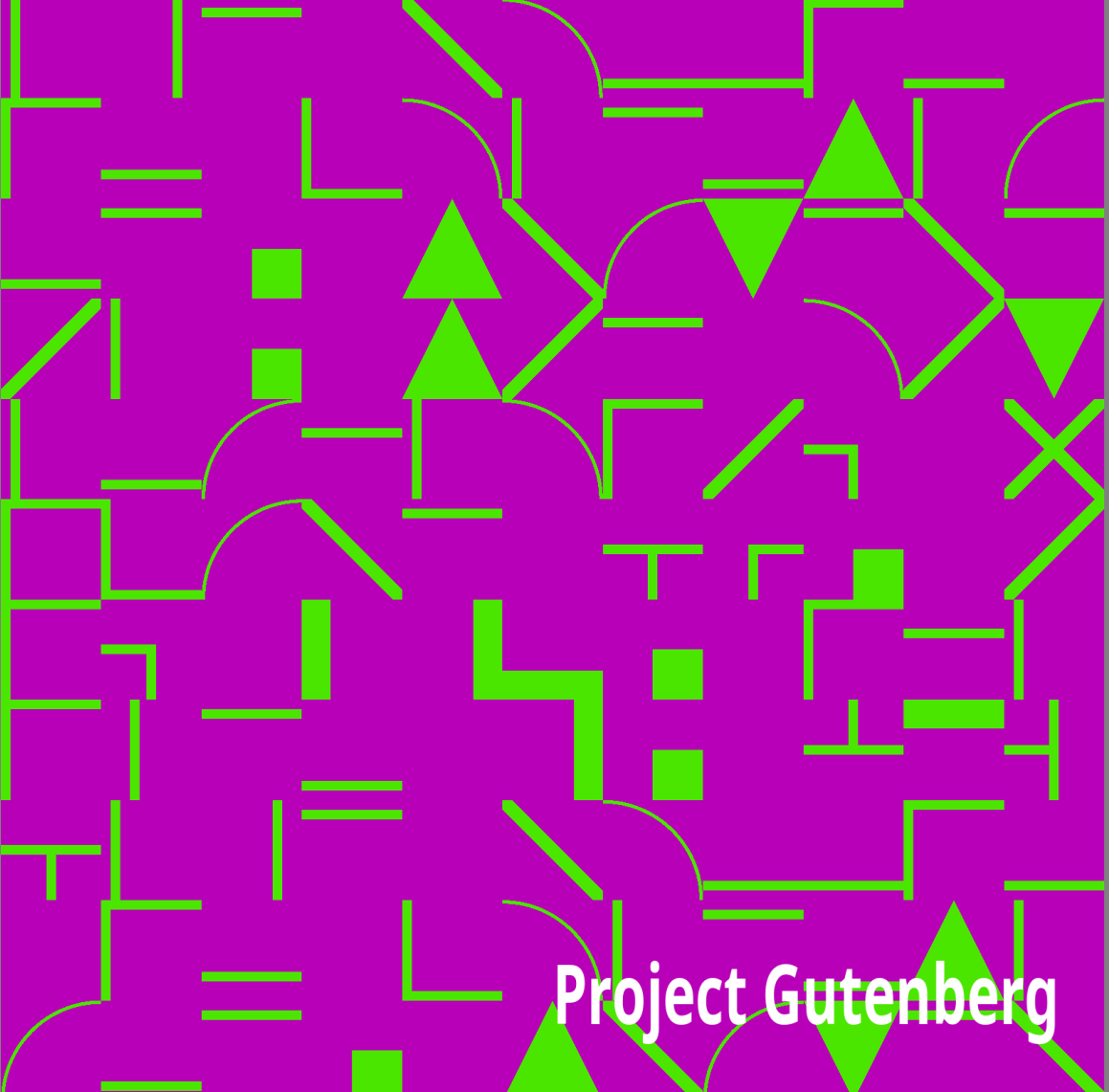
Various



Project Gutenberg

**The Mirror of Literature, Amusement, and
Instruction. Volume 20, No. 569, October 6,
1832**

Various



Project Gutenberg

**The Project Gutenberg eBook of The Mirror of Literature,
Amusement, and Instruction. Volume 20, No. 569, October 6, 1832**

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

Title: The Mirror of Literature, Amusement, and Instruction. Volume 20,
No. 569, October 6, 1832

Author: Various

Release date: November 10, 2004 [eBook #14007]
Most recently updated: October 28, 2024

Language: English

Other information and formats: www.gutenberg.org/ebooks/14007

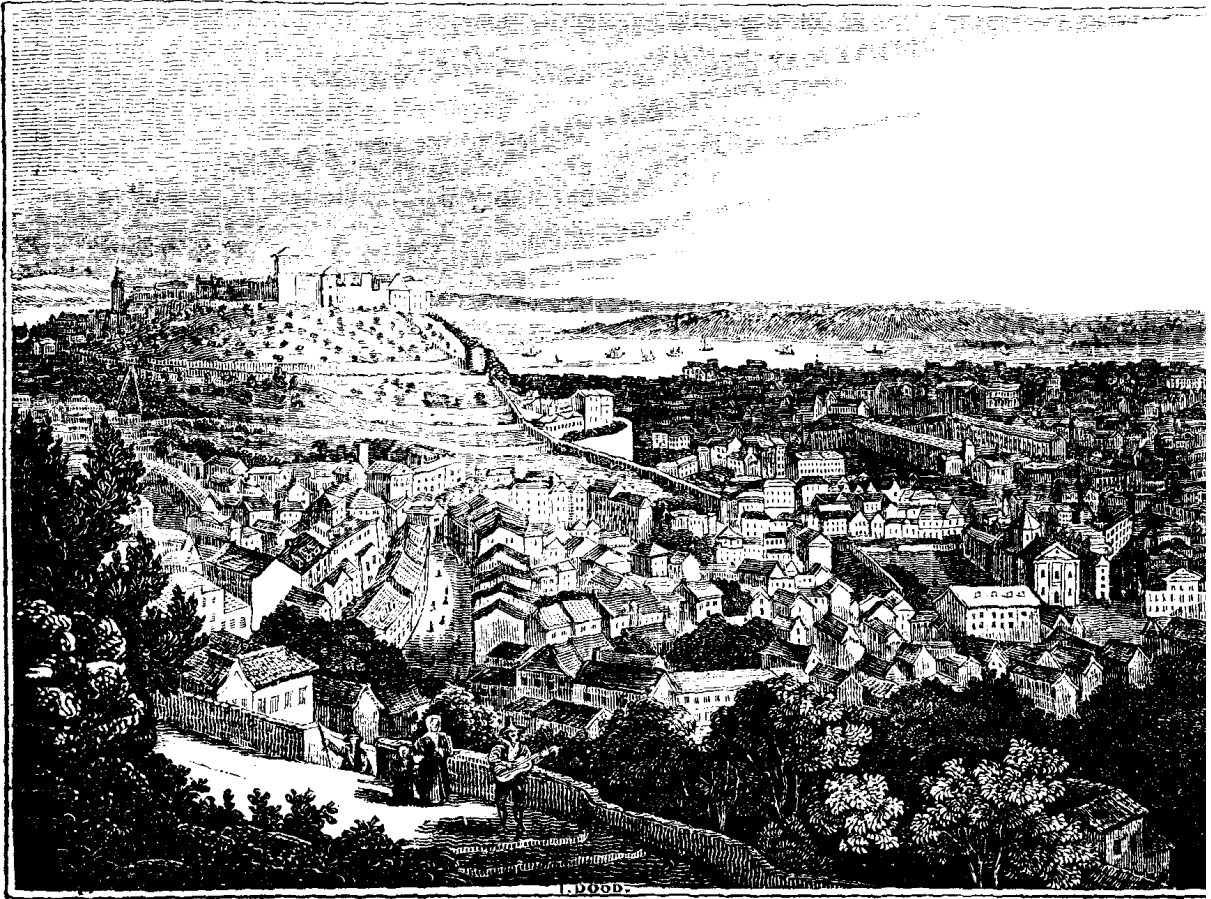
Credits: Produced by Jonathan Ingram, David Garcia and the PG Online
Distributed Proofreading Team.

*** START OF THE PROJECT GUTENBERG EBOOK THE MIRROR OF
LITERATURE, AMUSEMENT, AND INSTRUCTION. VOLUME 20, NO.
569, OCTOBER 6, 1832 ***

**THE MIRROR
OF
LITERATURE, AMUSEMENT,
AND INSTRUCTION.**

VOL. XX., NO. 569.] SATURDAY, OCTOBER 6, 1832. [PRICE 2d.

LISBON.



LISBON.

Lisbon, the capital of Portugal, was called by the ancients Ulyssippo, and the foundation is fabulously ascribed to Ulysses. The situation is grand, on the north bank of the river Tagus, in lat. $38^{\circ} 42\frac{1}{3}'$ N., lon. $9^{\circ} 8\frac{1}{3}'$ W. The harbour, or rather road, of Lisbon, is one of the finest in the world; and the quays are at once convenient and beautiful. On entering the river, and passing the forts of St. Julian and of Bugio, situated respectively at the extremities of the northern and southern shores, we obtain a view of Lisbon crowning the hills on the north bank, about three leagues distant above the mouth of the Tagus. The quintas or villas scattered over the country, between the villages, become more numerous the further we advance; till, at length, on approaching

Belem, an uninterrupted chain of edifices is seen extending along the margin of the noble river, to the remotest part of the ancient capital, being a distance of full six miles. Opposite Belem Castle, and on the southern shore of the Tagus, is the small fort of Torre Velha. These two forts, situated at the narrowest part of the river, guard the approach to the capital by sea; and all vessels arriving at its port have their papers examined at Belem Castle. The salutes of ships of war are, in like manner, answered by its guns. Proceeding onward, we pass the Convent of St. Geronymo, a splendid pile of Moorish architecture, "the picturesque appearance of the scene being heightened by groups of boats peculiar in their construction to the Tagus." From Belem we trace a range of buildings, connecting it with Alcantara and Buenos Ayres, and finally with the ancient city of Lisbon. Alcantara is situated at the mouth of a narrow valley opening upon the Tagus. Upon the brow of the hill, on the eastern side, is another of the royal residences, called the palace of Necessiades; and, stretching across the valley, about a mile above this point, is the far-famed aqueduct, which conveys the chief supply of water to the capital. The new and populous quarter of Buenos Ayres (so called from its being considered the healthiest situation around the capital,) covers the steep hills situated in the angle formed by the Alcantara valley and the Tagus. Miss Baillie, in her amusing *Letters*, describes Buenos Ayres as "a suburb of Lisbon, standing upon higher ground than the city itself, and a favourite resort of the English, being generally considered as a cooler and more cleanly (or rather a *less filthy*) situation than the latter." The splendid river scenery from Belem to Lisbon, the luxuriant prospect from the adjoining heights; the city itself, with its domes, and towers, and gorgeous buildings—all this proud assemblage of nature and art—remind us that

It is a goodly sight to see
What Heaven hath done for this delicious land!
What fruits of fragrance blush on ev'ry tree!
What goodly prospects o'er the hill expand;
But man would mar them with an impious hand.

BYRON.

The Engraving represents one of the most comprehensive views of the city, obtained from an eminence crowned by the chapel of Nossa Senhora da Monte. It has been copied from one of Colonel Batty's faithful Views,^{[1](#)} and its details cannot better be explained than in the words of the clever artist:

"From this elevation, the spectator, on turning to the south, has before him the principal part of the busy capital. The Castle Hill, crowned by a variety of buildings, and encircled by the old walls of its Moorish fortifications, stands conspicuously on the left. Its northern slope is planted with olive-trees, which add to its picturesque appearance, and afford an agreeable relief to the eye in this widely extended scene of a dense and populous city. On the right hand is another range of heights, less elevated than the Castle Hill, but covered with buildings, amidst which churches, convents, and hospitals, form prominent objects. The valley, in the centre of the view, appears from this point to be choked up with an almost impenetrable labyrinth of houses. This is, however, now the most regular portion of the capital. Having been that part which suffered most severely from the great earthquake of 1755, it has since been rebuilt upon a uniform plan, with its streets intersecting each other at right angles. In this quarter also are the two principal *pracas*, or squares, in the city. The largest of these is the *Praca do Commercio*, opening to the south upon the broad expanse of the Tagus. Here formerly stood the royal palace, which was almost instantaneously destroyed by the same memorable earthquake. The centre of this square is ornamented by an equestrian statue of King Joseph I. The other square is situated a little more to the north, about the centre of the valley. It is called the *Rocio*, and was formerly styled the Square of the Inquisition, from that tribunal having held its sittings in a large building at its northern extremity. The Castle Hill conceals from our view a portion of the ancient city, which, it is remarkable, escaped with comparatively trifling damage from the earthquake, though immediately contiguous to the part just described, which, in a few moments, was rendered a complete mass of ruins, burying thousands of the wretched inhabitants. Beyond the Tagus, the heights of Almada are seen bounding the view, and extending westward towards the sea."

MRS. HEMANS.

(*To the Editor.*)

In No. 550, of *The Mirror*, in some account of Mrs. Hemans, by *The Author of a Tradesman's Lays*, it is erroneously stated that Mrs. Hemans is a native of Denbighshire. She was born in Liverpool, and was the daughter of Mr. George Brown, of the firm of Messrs. George and Henry Brown, extensive merchants

in the Irish trade. Mr. Brown removed with his family, from Liverpool, to near Abergele, North Wales, where he resided some years. He married a Miss Wagner, daughter of Paul Wagner, Esq., a German, and a respectable merchant in Liverpool. Mrs. Hemans's early poems were published by subscription in 1808; they were beautifully printed in quarto, at the press of the late Mr. John McCreery,² who long resided in Liverpool. Mrs. Hemans, after her marriage, lived near St. Asaph, with her mother and brother, Sir Henry Brown; after which she took up her residence at the village of Wavertree, three miles from Liverpool.

Liverpool.

A CONSTANT READER.

SPONTANEOUS COMBUSTION.

(To the Editor.)

The remarks of your Correspondent, *A. Booth*, in No. 567, of *The Mirror*, with respect to what is generally called "Spontaneous Combustion," are very just. My present object is to show that the term "spontaneous" as applied to the subject in question, is incorrect. Mons. Pierre Aimee Laire, in an "Essay on Human Combustion from the abuse of Spirituous Liquors," states that it is the breath of the individuals coming in contact with some flame, and being thus communicated inwardly, that is the cause of the combustion, and therefore it cannot be spontaneous; and he cites several instances of persons addicted to spirituous liquors being thus burnt. Moreover, it is stated that an anatomical lecturer, at Pisa, in the year 1597, happening to hold a lighted candle near a subject he was dissecting, on a sudden set fire to the vapours that came out of the stomach he had just opened. In the same year, as Dr. Ruisch, then anatomical professor at Pisa, was dissecting a woman, and a student holding a candle to give him light, he no sooner opened the stomach than there issued a yellow, greenish flame. Also at Lyons, in dissecting a woman, the stomach was no sooner opened than a considerable flame burst out and filled the room. This has been accounted for by experiments made by Dr. Vulpari, anatomical professor at Bologna. He affirms that any one may see, issuing from the stomach of an animal, a matter that burns like spirits of wine, if the upper and

lower orifices are bound fast with a strong thread, and the stomach being thus tied, be cut above and under the ligature, and afterwards pressed with both hands, so as to make all that it contains pass on one side, and to produce a swelling on that part which contains the incision, which must be held with the left hand, to prevent the inflammable air escaping. This hand being removed, and a candle applied about an inch from the stomach, a blueish flame will issue, which will last nearly a minute. The circumstances of the case of Grace Pitt, to which your Correspondent refers, perfectly coincide with the foregoing remarks. She was accustomed for several years to go down stairs after she was undressed, to *smoke a pipe*. Her daughter, who slept with her, did not miss her till the morning, when on going down stairs, she found her mother's body extended *over the hearth*, and appearing like a block of wood burning with a glowing fire, without flame. She was, no doubt, in the act of lighting her pipe, either at the fire or candle, and the breath issuing from her mouth during respiration, being impregnated with the spirits she had lately drunk, caught fire, and communicated with the animal substance, also impregnated with spirit, and thus the body was destroyed. Indeed, in nearly all the cases of this nature reported, the bodies have been found on the hearth, or the persons have been left with a candle near them. The combustion of the human body in these cases is generally entirely inward, and it is very seldom that any of the contiguous articles are destroyed. In the instance mentioned above, a child's clothes on one side of the woman, and a paper screen were untouched, and the deal floor on which she lay was not even discoloured.

The most remarkable instance of this nature on record, is that of the Countess Cornelia Bandi; she was in the sixty-second year of her age, and on the day before well as usual. After she was in bed she conversed with her maid for two or three hours, and then fell asleep. The servant on going into her chamber in the morning, saw her lady's two feet distant from the bed, a heap of ashes, and two legs with the stockings on. Between the latter was part of the head, but the brains, half the skull, and the chin, were burnt to ashes, which, when taken up in the hand, left a greasy and offensive moisture. The bed received no damage, and the clothes were elevated on one side, as by a person rising from beneath them. She appears to have been burnt standing, from the skull being found between her legs; the back was damaged more than the front of the head, partly because of the hair, and partly because in the face there were several openings, out of which the flames are likely to have issued. In this account it is not stated either that she was of intemperate habits, or that a candle was left in

the room with her; but the latter is very likely, she being advanced in years; and it may be conjectured, that in rising from her bed, she caught fire.

One Borelli observes, that such accidents often happen to great drinkers of wine and brandy, and that it would be of much more frequent occurrence, were it not for the natural moisture of the body. Notwithstanding this, your readers must not think that I am opposed to the "cheerful draught:" I would say,

"Let each indulge his genius, each be glad,
Jocund and free, and swell the feast with mirth.
The sprightly bowl go cheerfully round.
Let none be grave, nor too severely wise;
Losses and disappointments, cares and poverty,
The rich man's insolence, and great man's scorn,
In wine be all forgotten."—ROWE.

St. Pancras.

W.A.R.

RETROSPECTIVE GLEANINGS.

EARLY PARLIAMENTS.

When the Saxon government was first established in England, there was no distinction of freehold and copyhold; the latter, according to Blackstone, was a possession acquired by a vassal subsequent to the Norman feudal system. Copyholders being thus considered as slaves, were, notwithstanding their possessions, deemed unworthy of the franchise; and from this refinement, on the arbitrary principles of the Normans, every copyholder was deprived of a vote, unless he could claim it by some other tenure.

The term borough originally meant a company consisting of ten families, which were bound together as each other's pledge. Afterwards boroughs came to signify a town, having a wall, or some sort of enclosure round; and all places that, in old times, had the name of boroughs, it is said, were fortified or fenced in some shape or other.

In the time of the West Saxons, a parliament was holden by King Ina, by these words: "I, Ina, King of the West Saxons, have caused all my fatherhood, aldermen, and wisest commons, with the goodly men of my kingdom, to consult of weighty matters."

William the Conqueror, in the fourth year of his reign, called a parliament, which consisted of twelve representatives for each county, and the cities and boroughs were wholly omitted. After the battle of Lewes, in which Henry III. was defeated by the barons, they called a parliament, and made the king sign an order to summon four knights to represent each county, and four for the cities of London, York, and Lincoln. These representatives were chosen by universal suffrage of the householders, and although the king regained his authority by the subsequent defeat of the barons, two members for each county continued to be elected in the same manner till the 8th of Henry VI. In the parliament held in the 49th of Henry III., he sent writs to the nobles and to the sheriffs of several counties, to return two knights for each county, two citizens for each city, and two burgesses for each borough.

It was contrary to an ancient rule of the constitution, that any person should be allowed to vote at elections who did not reside in the place or county where the election was made; that rule says, that "ineddem comitata commercentes et residentes" only shall vote; and this was confirmed by an act of parliament, (1 Henry V. c. i.) but recently repealed.

In 1429, an important change was made as to the qualifications of the voters for knights of the shires. The voters were obliged to prove themselves worth 40s. per annum. Before this time, every freeholder might vote, and the vast concourse of electors brought on riots and murders. Seventy pounds would, in modern days, be barely an equivalent for our ancestors' 40s. The freeholders were, at the same time, directed to choose two of the fittest and most discreet knights resident in their county; or, if none could be found, notable esquires, gentlemen by birth, and qualified to be made knights; but no yeoman or persons of inferior rank.

W.G.C.

MANNERS AND CUSTOMS.

MARVELLOUS CURE OF THE TOOTHACH.

(From a Correspondent.)

A friend, who has recently returned from India, relates that he received a perfect cure for the toothach, in a very remarkable way. He had occasion to land on the Isle of Bourbon, at the time of his being afflicted with a tormenting toothach; and a handkerchief being tied about his head, his appearance excited the curiosity of the natives, who approached him, and inquired, by signs and gestures, the nature of his complaint. Having been satisfied on this point, they made him understand that *they* could cure him, if he would consent to their method; which he did with great willingness, as he was maddened with pain, and eager to make any experiment to gain relief. They first kindled a fire on the ground with a few dry sticks, and then directed their patient to hold the fore finger of his right hand to the tooth that was affected, while they articulated a sort of jargon among themselves. When they had finished, and the sticks were all burnt, they told him to withdraw his hand, and the pain would cease. He did so, when his joy and astonishment exceeded all bounds to find that the pain had *actually left him!*

This story may appear somewhat strange, yet I have no reason to doubt the veracity of my friend, who supposes that the artful natives burned some kind of herb in order to impregnate the air with its qualities, which being admitted into the cavity of the tooth, effectually removed the pain. He says he has never experienced a return of the complaint since.

G.W.N.

JOURNAL OF A SHERIFF OF LONDON.

(Concluded from page 198.)

"Wednesday, Oct. 29th. This being our grand feast day, my Lord Mayor, Humphry Parsons, Esq., sent his summons to attend at Guildhall, by ten o'clock, and that he would set out from thence, to Westminster, precisely at eleven, in order to be back to our entertainment more early. What added magnificence to this day's *Shew* was, that his lordship's coach was drawn by six horses, adorned with grand harnesses, ribbons, &c., a sight never before seen on this occasion.—The Lord Chancellor and some of the Judges dined with us; the whole entertainment was happily conducted with great order and decency, and the company was broken up by about one o'clock in the morning.

"Wednesday, Nov. 5th. This being the commemoration of the Gunpowder Plot, we, the sheriff's, attended my Lord Mayor from Guildhall to St. Paul's: and as his lordship's coach was, on this occasion, drawn as before by six horses, which he intended to do on every public occasion, it caused a more than ordinary concourse of people in the streets."

On Sunday, the 11th of January, Mr. Hoare, in his scarlet gown, with the Lord Mayor, and several of the aldermen, received the holy communion, in St. Lawrence's church, in pursuance of the statutes, to qualify themselves to act as magistrates; and on the following day, being Plough Monday, he attended the Lord Mayor at Guildhall, "to receive the several presentments of the respective wardmote inquests of each ward,—and at the same time to swear in all new constables for the ensuing year." On Wednesday, the 14th the quarter sessions commenced, "when it is usual for the several common councilmen to take the oaths of allegiance;" which was done accordingly.

"Friday, February 20th. Waited on my Lord Mayor to Bow church, in my scarlet, to hear a sermon upon the propagation of the gospel in foreign parts; to which the Archbishop of Canterbury also came in his state coach, and with grand solemnity, attended by seven or eight bishops, and great numbers of gentlemen of that society."

The Lord Mayor (Humphry Parsons) died on the evening of March the 21st, 1741; on the 23rd, Daniel Lambert, Esq. was elected to succeed him, and the same evening he was presented to the Lord Chancellor, and approved of in the usual manner.

"Wednesday, March 15th. This day the new Lord Mayor went in grand state and procession by land to the Tower-gate, on Tower-hill, to be there presented

to and sworn in before the Constable of the Tower, according to the charter and ancient custom and usage when a Lord Mayor happened, as in this case, to be chosen out of term time; and, consequently, cannot be presented to the Barons of the Exchequer sitting at Westminster. Just at the entrance of the Tower-gate, a large booth was built up, with seats and benches at the upper end, in the middle of which the right honourable Lord Cornwallis, Constable of the Tower, was seated, attended by the officers and servants belonging to him; to whom the Lord Mayor was conducted and presented, and sworn in the same manner as before the Barons of the Exchequer."

On the 28th of March, being Easter Eve, the sheriff's attended the Lord Mayor "through the streets, to collect charity for the prisoners in the city prisons, according to annual custom;" and on the Monday following, they accompanied his lordship, in procession, with the rest of the court of aldermen to St. Bride's church to hear the '*Spital* or *Hospital Sermon* preached before the governors of the several hospitals and charity schools of the city; and to which "all the charity children of the several schools, as also those of Christ's hospital, go in procession, and are seated in the galleries." This sermon is "generally preached by a bishop," and that on the following day, in the same church (which is likewise attended by the corporation,) by a dean. On the third day in Easter week, the '*Spital* sermon is preached by a doctor in divinity.

Speaking of the *Easter Entertainments*, our journalist states the following particulars as the cause of their origin:—

"The original institution of those entertainments was occasioned by the Lord Mayor and the two sheriffs being accustomed to, separately, ask such of their friends who were aldermen or governors of the hospitals, whom they saw at church, to dine with them at their own houses. But in process of time, it was agreed that the Lord Mayor should invite all that were at church on the first day; and the two sheriff's, in their turn, on the next succeeding days. Hence, by degrees, they began to invite other of their friends; and the aldermen bringing their ladies, other ladies were also invited, so that the private houses not being large enough, they began to entertain at their respective halls: whence it is now brought to pass, that these Easter entertainments are become the chiefest articles of expense both to the Lord Mayor and the two sheriffs.

"Monday, April 6th. The sessions began at Guildhall, but the Lord Mayor dispensed with the presence of the sheriffs, on account that we this day were

obliged to attend at Westminster, where we were to make our proffers at the Exchequer by a tender of 40s.; and which was accordingly made by one of the secondaries at the Tally-office; by which, and the annual rent of 300*l.*, the citizens of London hold and enjoy the *Sheriffwick* of London and Middlesex according to their charter. Afterwards we entertained all the Exchequer officers, according to ancient custom, with *fifty-two calves'* heads, dressed in different manners."

On the 20th of April the sheriffs accompanied the Lord Mayor to hold a Court Baron and Court Leet at the Mitre in St. James's parish, in *Duke's-place*, which is "a franchise within the liberty of London." After a jury had been sworn, &c., the names of the inhabitants being called over, those who were absent and sent no excuse were amerced, but those who sent "their excuses by their friends, paid only leet pence." The court then granted licenses to the public houses, and swore in the headboroughs, constables, and other officers.

On the 27th of May the sheriffs (by invitation, they having no concern with the jurisdiction of the court,) attended the Lord Mayor to Stratford, in Essex, and Greenwich in Kent, to hold "his *Court of Conservancy* of the navigation and fishery of the River Thames, from Staines bridge, in Middlesex, down to the mouth of the river Medway, at Sheerness, beyond the Nore;" he "being personally himself, by virtue of his office, the sole Conservator." On returning, "a little after ten o'clock," the party attempted to land at the King's Stairs at the tower, "but they being shut, and, after waiting some time, the wardour refusing to open them," they were obliged to proceed to the common stairs near that fortress.

"Soon after, the major of the tower came to my Lord Mayor to acquaint him, that 'he was sorry for the refusal of which the wardour had been guilty, whom he had ordered to strict duty, and would oblige him to come and ask pardon for his insolence.' Upon this apology, it was agreed that no further notice or complaint should be made; for it is to be known that the Lord Mayor of this city has the privilege of going through the Tower to take water, or on his landing at the King's Stairs, sending reasonable notice of such his intention."

At a Common Council, held on the 17th of June, it was ordered that every person who had paid the customary fine of 400*l.* and twenty marks more towards the maintenance of the ministers of the several prisons of this city," with the usual fees, should be exempted for ever from serving the office of

sheriff, "unless he should at any time become an alderman." Previously to that act, the payment of the fine excused only for one year.

"Tuesday, June 23rd. Attended the Lord Mayor to a court of aldermen, at which Abel Aldridge, who had been nominated for sheriff, came with *six Compurgators*, and, (according to the act of Common Council, Sir J. Barnard, Mayor,) swore he was not of the value of 15,000*l.* in money and separate debts; and his Compurgators swearing also, that they believed what he swore to be true, he was excused from serving the said office, without payment of any fine."

On the 22nd of August the sheriffs waited on the Lord Mayor at Guildhall, "and from thence went in procession to Smithfield, with city officers and trumpets to proclaim Bartholomew Fair." On the 2nd of September, "this day being kept solemn in commemoration of the fire of London," they went to St. Paul's in their "black gowns, and no chains, and heard a sermon on the said occasion." On the 8th of September the sheriffs waited on the Lord Mayor, in procession, "the city music going before, to proclaim *Southwark Fair*, as it is commonly called, although the ceremony is no more than our going in our coaches through the Borough, and turning round by Saint George's church, back again to the Bridge House; and this to signify the license to begin the fair." The journalist adds:—"On this day the sword-bearer wears a fine *embroidered cap*, said to have been worked and presented to the city by a monastery."

"Monday, September 21st, being St. Matthew's Day, waited on my Lord Mayor to the great hall in Christ's Hospital, where we were met by several of the presidents and governors of the other hospitals within the city; and being seated at the upper end, the children passed two by two, whom we followed to the church, and after hearing a sermon, came back to the grammar school, where two boys made speeches in commemoration of their benefactors, one in English, the other in Latin; to each of whom it is customary for the Lord Mayor to give one guinea, and the two sheriffs half-a-guinea a piece, as we did. Afterwards, the clerk of the hospital delivered to the Lord Mayor a list of the several governors to the several hospitals nominated the preceding year. Then the several beadles of all the hospitals came in, and laying down their staves on the middle of the floor, retired to the bottom of the hall. Thereupon the Lord Mayor addressed himself to the City Marshal, enquiring after their conduct, and if any complaint was to be made against any one in particular;

and no objection being made, the Lord Mayor ordered them to take up their staves again: all which is done in token of their submission to the chief magistrate, and that they hold their places at his will, though elected by their respective governors. We were afterwards treated in the customary manner with *sweet cakes and burnt wine*."

The shrievalty of Mr. Hoare, and his brother officer, expired on the 28th of September, and about seven o'clock in the evening the indentures with the new sheriffs were executed at Guildhall, "and the charge of the gaols and all other trusts relating to this great and hazardous, though otherwise honourable, employment, delivered over to them. And after being regaled with *sack and walnuts*, I returned to my own house in my private capacity, to my great consolation and comfort."

In concluding this account of a manuscript, which illustrates so many of the customs and privileges of the city, it should be mentioned that it includes various notices of the treats or dinners which the Lord Mayor and the sheriffs give by turns to the judges, sergeants, &c. at the beginning and end of the respective terms; as well as of the manner of delivering petitions to the House of Commons, which is generally done by the sheriff; the city having a right to present petitions by an officer of its own, and without the intervention of any member.

THE NATURALIST.

THE NIGHTINGALE.

The nightingale is universally admitted to be the most enchanting of warblers; and many might be tempted to encage the mellifluous songster, but for the supposed difficulty of procuring proper food for it. In the village of Cossey, near Norwich, an individual has had a nightingale in cage since last April; it is very healthy and lively, and has been wont to charm its owner with its sweet and powerful strains. The bird appears about two years old: it has gone through this year's moulting. It is kept in a darksome cage, with three sides wood, and the fourth wired. The bottom of the cage is covered with moss. Its constant food is a paste, which is composed of fresh beef or mutton, scraped fine with a knife, and in equal portions mixed with the yolk of an egg boiled hard. The owner, however, about once a-day, gives it also a *mealworm*; he does not think this last dainty to be necessary, but only calculated to keep the nightingale in better spirits. The paste should be changed before it becomes sour and tainted.

PHILOMELOS.

NOTES

Abridged from the Magazine of Natural History.

Silkworm.—(By a Correspondent.)—It has occurred to me, and I have not seen it remarked elsewhere, as a striking and interesting peculiarity of this insect, that it does not wander about as all other caterpillars do, but that it is nearly stationary in the open box or tray where it is placed and fed: after consuming the immediate supply of mulberry leaves, it waits patiently for more being provided. I apprehend this cannot be said of any other insect whatever. This docile quality of the worm harmonizes beautifully with its vast importance to mankind, in furnishing a material which affords our most elegant and beautiful, if not most useful, of garments. The same remark applies to the

insect in the fly or moth state, the female being quite incapable of flight, and the male, although of a much lighter make, and more active, can fly but very imperfectly; the latter circumstance ensures to us the eggs for the following season, and thus completes the adaptation of the insect, in its different stages, to the useful purpose it is destined to fulfil for our advantage.

The Possibility of introducing and naturalizing that beautiful Insect the Fire Fly.—It abounds not only in Canada, where the winters are so severe, but in the villages of the Vaudois in Piedmont. These are a poor people much attached to the English: and, at 10s. a dozen, would, no doubt, deliver in Paris, in boxes properly contrived, any number of these creatures, in every stage of their existence, and even in the egg, should that be desired: and if twenty dozen were turned out in different parts of England, there cannot remain a doubt but that, in a few years, they would be common through the country; and, in our summer evenings, be exquisitely beautiful.

Vigne, in his *Six Months in America*, says:—"At Baltimore I first saw the fire-fly. They begin to appear about sunset, after which they are sparkling in all directions. In some places ladies wear them in their hair, and the effect is said to be very brilliant. Mischievous boys will sometimes catch a bull-frog, and fasten them all over him. They show to great advantage; while the poor frog, who cannot understand the 'new lights' that are breaking upon him, affords amusement to his tormentors by hopping about in a state of desperation."

The Vampire Bat.—Bishop Heber's opinion of the innocence of this creature by no means agrees with what one has read of his bloodthirsty habits; and particularly the instances given by Captain Stedman, in his *Travels of Surinam*, who, more than once, individually, experienced the inconvenience of the Sangrado system of blood-letting, or, more properly, blood-taking, pursued by this practitioner.

"Non missura cutern, nisi plena cruoris hirudo."

HOR.

"This leech will suck the vein, until
From your heart's blood he gets his fill."

In answer to a query, "whether the vampire of India and that of South America be of one species," Mr. Waterton replies, "I beg to say that I consider them

distinct species. I have never yet seen a bat from India with a membrane rising perpendicularly from the end of its nose; nor have I ever been able to learn that bats in India suck animals, though I have questioned many people on this subject. I could only find two species of bats in Guiana, with a membrane rising from the nose. Both these kinds suck animals and eat fruit; while those bats without a membrane on the nose seem to live entirely upon fruit and insects, but chiefly insects. A gentleman, by name Walcott, from Barbadoes, lived high up the river Demerara. While I was passing a day or two at his house, the vampires sucked his son a boy of about ten or eleven years old, some of his fowls and his jack-ass. The youth showed me his forehead at daybreak: the wound was still bleeding apace, and I examined it with minute attention. The poor ass was doomed to be a prey to these sanguinary imps of night: he looked like misery steeped in vinegar. I saw, by the numerous sores on his body, and by his apparent debility, that he would soon sink under his afflictions. Mr. Walcott told me that it was with the greatest difficulty he could keep a few fowls, on account of the smaller vampire; and that the larger kind were killing his poor ass by inches. It was the only quadruped he had brought up with him into the forest.

"Although I was so long in Dutch Guiana and visited the Orinoco and Cayenne, and ranged through part of the interior of Portuguese Guiana, still I could never find out how the vampires actually draw the blood; and, at this day, I am as ignorant of the real process as though I had never been in the vampire's country. I should not feel so mortified at my total failure in attempting the discovery, had I not made such diligent search after the vampire, and examined its haunts. Europeans may consider as fabulous the stories related of the vampire; but, for my own part, I must believe in its powers of sucking blood from living animals, as I have repeatedly seen both men and beasts which had been sucked, and, moreover, I have examined very minutely their bleeding wounds.

"Wishful of having it in my power to say that I had been sucked by the vampire, and not caring for the loss of ten or twelve ounces of blood, I frequently and designedly put myself in the way of trial. But the vampire seemed to take a personal dislike to me; and the provoking brute would refuse to give my clavet one solitary trial, though he would tap the more favoured Indian's toe, in a hammock within a few yards of mine. For the space of eleven months, I slept alone in the loft of a woodcutter's abandoned house in the forest; and though the vampire came in and out every night, and I had the

finest opportunity of seeing him, as the moon shone through apertures where windows had once been, I never could be certain that I saw him make a positive attempt to quench his thirst from my veins, though he often hovered over the hammock."

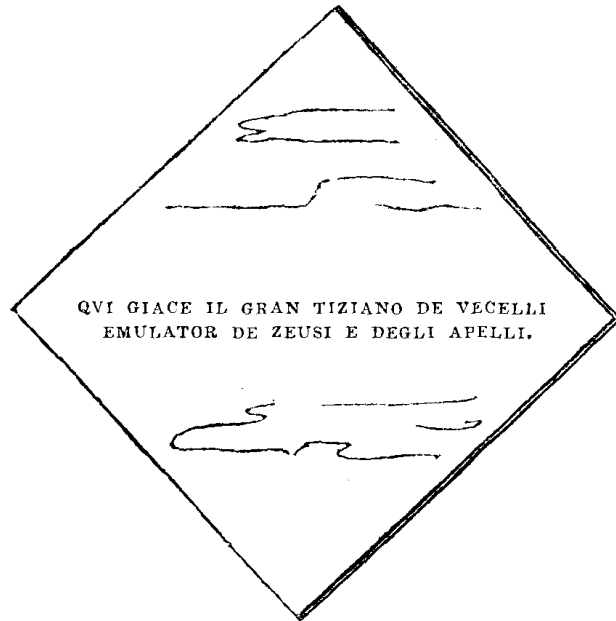
THE STORK

Is now rarely seen in Britain; one was killed a short time since in the neighbourhood of Ethie House, and is to be seen in Mr. Mollison's Museum, Bridge-street, Montrose. The editor of the Montrose Review believes that a stork had not been killed in Scotland since the year 1766.

FINE ARTS.

THE GRAVE OF TITIAN.

Beneath this plain sepulchral stone, in the church of Santa Maria de Frari, at Venice—rest the ashes of TITIAN, the prince of the Venetian school of painters, and who, "was worthy of being waited upon by Cæsar." Yes, this alone denotes his grave at the foot dell'Altare di Crocisfisso.

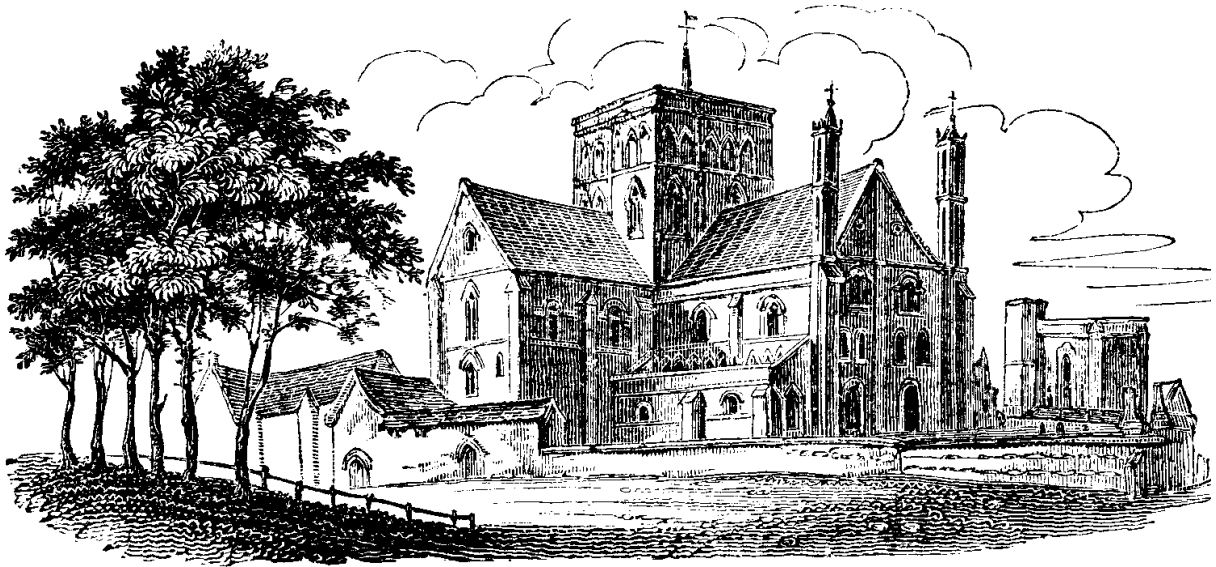


Titian was born at a sequestered town in the Alps of Friuli, in the year 1477, his father being of the ancient family of Vecelli. He began very early to show a turn for drawing, and designed a figure of the Virgin, with the juice of flowers, the only colours probably within his reach. He was the scholar of Giovanni Bellino, but adopted the manner of Giorgione so successfully, that to several portraits their respective claims could not be ascertained. The Duke of Ferrara was so attached to Titian, that he frequently invited him to accompany him in his barge from Venice to Ferrara. At the latter place he became acquainted with Ariosto. In 1647, at the invitation of Charles V. Titian joined the imperial court. The emperor then advanced in years sat to him for the third time. During the time of sitting, Titian happened to drop one of his pencils, the emperor took it up; and on the artist expressing how unworthy he was of such an honour, Charles replied, "that Titian was worthy of being waited upon by Cæsar." But, "to reckon up the protectors and friends of Titian, would be to name nearly all the persons of the age, to whom rank, talent, and exalted character, appertained. Being full of years and honours, he fell a victim to the plague in 1576, at the age of ninety-nine. To perpetuate his memory, the artists at Venice proposed celebrating his

obsequies, with great pomp and magnificence in the church of St. Luke, the programme of which is given at length, by Ridolfi; but, owing to the prevalence of the plague, no funeral ceremony was allowed by the state: the authorities, however, made an exception in Titian's favour, and suffered him to be buried in the church of Friari, as we have stated."

Sir Abraham Hume, the accomplished annotator of the *Life and Works of Titian*, observes: "It appears to be generally understood that Titian had, in the different periods of life, three distinct manners of painting; the first hard and dry, resembling his master, Giovanni Bellino; the second, acquired from studying the works of Giorgione, was more bold, round, rich in colour, and exquisitely wrought up; the third was the result of his matured taste and judgment, and properly speaking, may be termed his own; in which he introduced more cool tints into the shadows and flesh, approaching nearer to nature than the universal glow of Giorgione." After stating what little is known of the mechanical means employed by Titian in the colouring of his pictures, Sir Abraham observes: "Titian's grand secret of all, appears to have consisted in the unremitting exercise of application, patience, and perseverance, joined to an enthusiastic attachment to his art: his custom was to employ considerable time in finishing his pictures, working on them repeatedly, till he brought them to perfection; and his maxim was, that whatever was done in a hurry, could not be well done." In manners and character, as well as talent, Titian may not inappropriately be associated with "the most eminent painter this country ever produced"—Sir Joshua Reynolds.

HOSPITAL OF ST. CROSS, HANTS.



(The Church.)

This is one of the most interesting structures in Great Britain. It stands about one mile west from Winchester, on the banks of the river Itchin. Its architectural character is of the first importance in illustrating the superior skill of our ancestors; while it has retained more of its original character than any similar record of ancient piety and charity in our island. Dr. Milner, in allusion to its principal features, observes: "the lofty tower, with the grated door, and porter's lodge beneath it; the retired ambulatory; the separate cells; the common refectory; the venerable church; the black flowing dress and the silver cross worn by the members; the conventual appellation of *brother*, with which they salute each other; in short, the silence, the order, and the neatness, that here reign, seem to recall the idea of a monastery to those who have seen one, and will give no imperfect idea of such an establishment to those who have not had that advantage."³

St. Cross, however, "never was a monastery, but only an hospital for the support of ancient and infirm men, living together in a regular and devout manner." The original founder was Henry de Blois, bishop of Winchester, who instituted it, between the years 1132 and 1136; and required that "thirteen poor

men, so decayed and past their strength that without charitable assistance they cannot maintain themselves, shall abide continually in the hospital, who shall be provided with proper clothing and beds suitable to their infirmities; and shall have an allowance daily of good wheat bread, good beer, three messes each for dinner, and one for supper. That beside these thirteen poor, a hundred other poor, of modest behaviour and the most indigent that can be found, shall be received daily at dinner-time, and shall have each a loaf of coarser bread, one mess, and a proper allowance of beer, with leave to carry away with them whatever remains of their meat and drink after dinner." They were to dine in a hall appointed for the purpose, and called *Hundred Mennes Hall*, from this circumstance. The establishment also contained an endowment for a master, a steward, four chaplains, thirteen clerks, and seven choristers.

But, in those "good old times," abuses in institutions formed for the best and wisest purposes were not uncommon; and in the case of St. Cross, so early did evil begin to counteract good, that, in little more than two centuries from its foundation, the revenues assigned for the annual fulfilment of the founder's wishes, were grossly misapplied. They had increased in value, and the masters and brethren of the hospital of St. John of Jerusalem, who were guardians and administrators, seized the surplus and put it into their own pockets. Bishop Wykeham, who was appointed to the see of Winchester, in 1366, set about the reform of these abuses, which he was enabled to do by his canonical jurisdiction:—"he determined that the whole revenue of the hospital should be dedicated to the poor, as was the intention of the founder, and having in vain tried admonition and remonstrance, summoned the four masters to appear before him and answer for their stewardship. They were bold enough to set Wykeham at defiance, and availed themselves of all the subtleties of the law, and of all manner of evasion, by appeal and otherwise, to thwart and throw him. The upright bishop persisted—he called them to the severest account—had them fined, and till they made restitution, excommunicated—and finally restored the whole endowment to its primitive purpose."⁴

The propriety and good effects of Wykeham's restoration were so apparent, that his successor, Cardinal Beaufort, having determined to engage in some permanent charity, resolved rather to enlarge this institution, than to found a new one. "He therefore endowed it for the additional support of two priests, and thirty-five poor men, who were to become residents, and three hospital nuns, who were to attend upon the sick brethren: he also caused a considerable portion of the hospital to be rebuilt."⁵ Of the present establishment we shall

presently speak in detail. "The hospital," says Lowth, "though much diminished in its revenues, by what means I cannot say, yet still subsists upon the remains of both endowments."

The buildings of the hospital composed two courts; but the south side of the interior quadrangle has been pulled down. The entrance to the first court from the north is through a capacious gateway.⁶ On the east side is the **Hundred-Mennes Hall**, which is about forty feet long, and has been converted into a brewhouse; the roof is of Irish oak, and left open to the timbers, adjoining are the master's apartments. On the west is a range of offices; and, on the south, with portions of other buildings, is the lofty and handsome tower gateway, erected by Cardinal Beaufort, whose statue, in his Cardinal's habit, is represented kneeling in an elegant niche in the upper part: two other niches, of the same form, but deprived of their statues, appear also on the same level. Milner describes the embellishments of this tower: "in a cornice over the gates we behold the Cardinal's hat displayed, together with the busts of his father, John of Gaunt, of his royal nephews, Henry IV. and Henry V., and of his predecessor, Wykeham: in the spandrils, on each side, are the founder's arms. The centre boss in the groining of the gateway is carved into a curious cross, composed of leaves, and surrounded with a crown of thorns: on the left is the door of the porter's lodge.⁷ Passing through this gateway, the spectator sees, on his right, a long line of buildings, of the age of the original foundation, for the use of the brethren, each of whom has a house and garden to himself. On the left is an ambulatory, or cloister, 135 feet in length, and extending to the church on the south-east. Above the ambulatory is the ancient infirmary, and chambers called the Nuns's rooms, from their having been allotted to three hospital sisters on the foundation of Cardinal Beaufort. The centre of the court has a grass-plot, and gravel walks intersecting parterres of flowers, shrubs, &c."

Dr. Milner observes "the present establishment of St. Cross is but the wreck of its two ancient institutions; it having been severely fleeced, though not quite destroyed, like so many other hospitals at the Reformation. Instead of seventy residents, as well clergy as laity, who were here entirely supported, besides one hundred out-members, who daily received their meat and drink, the charity consists at present but of ten residing brethren and three out-pensioners, exclusive of one chaplain and the master. It is true, however, that certain "doles" of bread continue to be distributed to the poor of the neighbourhood; and what is, perhaps, the only vestige left in the kingdom of the simplicity and

hospitality of ancient times, the porter is daily furnished with a certain quantity of good bread and beer, of which every traveller, or other person whosoever, that knocks at the lodge, and calls for relief, is entitled to partake gratuitously."

Such was the state of the charity when Dr. Milner wrote, or, in the year 1809. Our Correspondent, *P.Q.* has furnished us with the following information to the 20th of last May.

"The funds of this hospital are very ample; for, after providing the master (the present Earl of Guildford)⁸ with a liberal sinecure, supporting the brethren and servants, and upholding the very extensive buildings, there are distributed the following 'doles:'

"On the 3rd of May, 10th of August, and the eve of the festivals of Easter, Whitsuntide, and Christmas, annually, the whole of the brethren and the steward of the house assemble and form two lines or ranks, at sunset, within the door of the outer gateway; when, to every person (even to infants) who applies at the gate, is given a loaf of brown bread, weighing about three pounds. This distribution is continued until all the bread is given away; and if the applicants should exceed the loaves in number, to each of the remaining persons is given an halfpenny, be they ever so numerous.

"These 'doles' are very beneficial to the poor of Winchester and vicinity; for to all who attend and obtain an early admission a loaf is given. I know, that when I was a boy, and never missed going to the 'doles,' some families, where the children were numerous, received from seven to ten loaves.

"Likewise every traveller who applies at the porter's lodge at the outer gate of this hospital is entitled to, and receives, a horn of good beer and a loaf or slice of bread. This demand is frequently made by persons of a different quality from that intended by the founder, for the sake of attesting the peculiarity of the custom. The quantity of bread given to each person is about four ounces—of beer about three-fourths of a pint."

We next proceed to describe the exterior of the venerable church: the *interior* will form the subject of a future article.

On entering the second court the first object that usually attracts attention is *the Church of St. Cross*, which extends a considerable distance into the court,

and destroys its regularity on the east side. The exterior of the church is not altogether imposing. "The windows, with one exception, are seen to disadvantage from without, and the whole building is enveloped in a shroud of yellow gravelly plaister, strangely dissonant with ideas of Norman masonry."⁹ The church is built in the cathedral form, with a nave and transept, and a low and massive tower, rising from the intersection: the whole length of the church is 150 feet; the length of the transept is 120 feet. The architecture of this structure is singularly curious, and deserving the attention of the antiquary, as it appears to throw a light on the progress, if not on the origin, of the pointed or English style. Our Correspondent states the whole to have been repaired about twenty-two years since, at a very considerable expense.

THE PUBLIC JOURNALS.

SCRAPS FROM THE DIARY OF A TRAVELLER.

BY THOMAS MOORE, ESQ.

O poets, poets, dream at home,
If you would *still* have visions haunt you;
Trust me, if once abroad you roam,
That mar-all, Truth, will disenchant you.
Still think of VENICE, as in dreams
You've seen her, by her ocean-streams;—
Fancy the calm and cool delights
Of gondolas on summer nights:
Of sailing o'er the bright Lagoon,
And listening, as you glide along,
To lays from TASSO, by that moon
Whose beams, alas! he felt too strong,
And of whose mad'ning philters all,
Who feel the Muse's genuine call,
Are doom'd, at times, to drink as deep,
As did Endymion in his sleep!

Still by your fire-sides sit, and think
Of palaces, along the brink
Of ocean-floods,—whose shadows there
Look like the ruins, grand and fair,
Of some lost ATALANTIS, seen
Beneath the wave, when heaven's serene.
People those palaces with forms
Lovely as TITIAN ever drew—
Bright creatures, whom the sunbeam warms
With that ethereal gas, all through.
Which finds a vent at lips and eyes,

And lights up in a lover's sighs.
Fancy these young Venetian maids
Listening, at night, to serenades
From amorous lutes, where Music, such
 As southern skies alone afford,
Echoes to every burning touch,
 And thrills in each impassion'd chord.

All this imagine, and still more,—
For whither may not Fancy soar,
If Truth do not, alas! too soon,
Puncture her brilliant air-balloon—
But go not to the spot, I pray;
O do not, *do not*, some fine day.
Order, like STERNE, your travelling breeches;—
All's lost, if once upon your way,
The passport of Lord ——
 Is death to Fancy—like his speeches.

If you would save *some* dreams of youth
From the torpedo touch of Truth,
Go not to VENICE—do not blight
Your early fancies with the sight
Of her true, real, dismal state—
Her mansions, foul and desolate,—
Her close canals, exhaling wide
 Such fetid airs as—with those domes
Of silent grandeur, by their side,
 Where step of life ne'er goes or comes,
And those black barges plying round
With melancholy, plashing sound,—
Seem like a city, where the Pest
 Is holding her last visitation,
And all, ere long, will be at rest,
 The dead, sure rest of desolation.

So look'd, at night-fall, oft to me
That ruin'd City of the Sea;
And, as the gloomy fancy grew

Still darker with night's darkening hue,
All round me seem'd by Death o'er cast,—
Each footstep in those halls the last;
And the dim boats, as slow they pass'd,
All burial-barks, with each its load
Of livid corpses, feebly row'd
By fading hands, to find a bed
In waters less choked up with dead.—*Metropolitan.*

ON THE DEATH OF SIR WALTER SCOTT.

By the Author of "Eugene Aram."

The blow is struck—the lyre is shattered—the music is hushed at length. The greatest—the most various—the most commanding genius of modern times has left us to seek for that successor to his renown which, in all probability, a remote generation alone will furnish forth. It is true that we have been long prepared for the event—it does not fall upon us suddenly—leaf after leaf was stripped from that noble tree before it was felled to the earth at last;—our sympathy in his decay has softened us to the sorrow for his death. It is not now our intention to trace the character or to enumerate the works of the great man whose career is run;—to every eye that reads—every ear that hears—every heart that remembers, this much at least, of his character is already known,—that he had all the exuberance of genius and none of its excesses; that he was at once equitable and generous—that his heart was ever open to charity—that his life has probably been shortened by his scrupulous regard for justice. His career was one splendid refutation of the popular fallacy, that genius has of necessity vices—that its light must be meteoric—and its courses wayward and uncontrolled. He has left mankind two great lessons,—we scarcely know which is the most valuable. He has taught us how much delight one human being can confer upon the world; he has taught us also that the imagination may aspire to the wildest flights without wandering into error. Of whom else among our great list of names—the heir-looms of our nation—can we say that he has left us everything to admire, and nothing to forgive?

It is in four different paths of intellectual eminence that Sir Walter Scott has won his fame; as a poet, a biographer, an historian, and a novelist. It is not now a time (with the great man's clay scarce cold) to enter into the niceties of

critical discussion. We cannot now weigh, and sift, and compare. We feel too deeply at this moment to reason well—but we ourselves would incline to consider him greatest as a poet. Never, indeed, has there been a poet so thoroughly Homeric as Scott—the battle—the feast—the council—the guard-room at Stirling—the dying warrior at Flodden—the fierce Bertram speeding up the aisle—all are Homeric;—all live—move—breathe and burn—alike poetry, but alike life! There is this difference, too, marked and prominent—between his verse and his prose;—the first is emphatically the verse of Scott—the latter (we mean in its style) may be the prose of any one—the striking originality, the daring boldness, the astonishing vigour of the style, in the *Lay of the Last Minstrel*, are lost in *The Antiquary* and *Guy Mannering*.

Scott may be said, in prose, to have *no style*. There are those, we know, who call this very absence of style a merit—we will not dispute it: if it be so, Scott is the first great prose writer from Bacon to Gibbon,—nay, from Herodotus, in Greek, to Paul Courier, in French—who has laid claim to it. For our own part, we think him great, in spite of the want of style, and not because of it. As a biographer, he has been unfortunate in his subjects; the two most important of the various lives he has either delineated or sketched—that of Dryden and that of Swift—are men, to whose inexorable baseness genius could neither give the dignity of virtue nor the interest of error.

As an historian, we confess that we prize him more highly than as a biographer: it is true that the same faults are apparent in both, but there is in the grand History of Napoleon more scope for redeeming beauties. His great, his unrivalled, excellence in description is here brought into full and ample display: his battles are vivid, with colours which no other historian ever could command. And all the errors of the history still leave scenes and touches of unrivalled majesty to the book.

As a novelist, Scott has been blamed for not imparting a more useful moral to his fictions, and for dwelling with too inconsiderate an interest on the chivalric illusions of the past. To charges of this nature all writers are liable. Mankind are divided into two classes; and he who belongs to the one will ever incur the reproach of not seeing through the medium of the other. Certain it is, that we, with utterly different notions on political truths from the great writer who is no more, might feel some regret—some natural pain—that that cause which we believe the best, was not honoured by his advocacy; but when we reflect on the *real* influence of his works, we are satisfied they have been directed to the

noblest ends, and have embraced the largest circle of human interests. We do not speak of the delight he has poured forth over the earth—of the lonely hours he has charmed—of the sad hearts he has beguiled—of the beauty and the music which he has summoned to a world where all travail and none repose; this, indeed, is something—this, indeed, is a moral—this, indeed, has been a benefit to mankind. And this is a new corroborant of one among the noblest of intellectual truths, viz. that the books which please, are always books that, in one sense, benefit; and that the work which is largely and permanently popular—which sways, moulds, and softens the universal heart—cannot appeal to vulgar and unworthy passions (such appeals are never widely or long triumphant!); the delight it occasions is a proof of the moral it inspires.

But this power to charm and to beguile is not that moral excellence to which we refer. Scott has been the first great genius—Fielding alone excepted—who invited our thorough and uncondescending sympathy to the wide mass of the human family—who has *stricken* (for in this artificial world it requires an effort) into our hearts a love and a respect for those chosen from the people. Shakspeare has not done this—Shakspeare paints the follies of the mob with a strong and unfriendly hand. Where, in Skakspeare, is there a Jeanie Deans? Take up which you will of those numerous works which have appeared, from *Waverley* to the *Chronicles of the Canongate*,—open where you please, you will find portraits from the people—and your interest keeping watch beside the poor man's hearth. Not, in Scott, as they were in the dramatists of our language, are the peasant, the artificer, the farmer, dragged on the stage merely to be laughed at for their brogue, and made to seem ridiculous because they are useful.

He paints them, it is true, in their natural language, but the language is subservient to the character; he does not bow the man to the phrase, but the phrase to the man. Neither does he flatter on the one hand, as he does not slight on the other. Unlike the maudlin pastoralists of France he contents himself with the simple truth—he contrasts the dark shadows of Meg Merrilies, or of Edie Ochiltree, with the holy and pure lights that redeem and sanctify them—he gives us the poor, even to the gipsy and the beggar, as they really are—contented, if our interest is excited, and knowing that nature is sufficient to excite it. From the palaces of kings—from the tents of warriors, he comes—equally at home with man in all aspects—to the cotter's hearth:—he bids us turn from the pomp of the Plantagenets to bow the knee to the poor Jew's daughter—he makes us sicken at the hollowness of the royal Rothsay, to

sympathize with the honest love of Hugh the smith. No never was there one—not even Burns himself—who forced us more intimately to acknowledge, or more deeply to feel, that

"The rank is but the guinea stamp,
The man's the gowd, for a' that."

Scott, is not, we apprehend, justly liable to the charge of wanting a sound moral—even a great *political* moral—(and political morals are the greatest of all)—in the general tenor of works which have compelled the highest classes to examine and respect the lowest. In this, with far less learning, far less abstract philosophy, than Fielding, he is only exceeded by him in one character—(and that, indeed, the most admirable in English fiction)—the character of Parson Adams. Jeanie Deans is worth a thousand such as Fanny Andrews. Fielding, Le Sage, and Cervantes are the only three writers, since the world began, with whom, as a novelist, he can be compared. And perhaps he excels them, as Voltaire excelled all the writers of his nation, not by the superior merits of one work, but by the brilliant aggregate of many. *Tom Jones*, *Gil Blas*, *Don Quixote*, are, without doubt, greater, *much* greater, productions than *Waverley*; but the *authors* of *Tom Jones*, *Gil Blas*, and even of *Don Quixote*, have not manifested the same fertile and mighty genius as *author* of the *Waverley Novels*.

And *that* genius—seemingly so inexhaustible—is quenched at length! We can be charmed no more—the eloquent tongue is mute—the master's wand is broken up—the right hand hath forgot its cunning—the cord that is loosened was indeed of silver—and the bowl that is broken at the dark well was of gold beyond all price.

When a great man dies, he leaves a chasm which eternity cannot fill. Others succeed to his fame—but never to the exact place which he held in the world's eye;—they may be greater than the one we have lost—but they are not he. Shakspeare built not his throne on the same site as Homer—nor Scott on that whence Shakspeare looked down upon the universe. The gap which Scott leaves in the world is the token of the space he filled in the homage of his times. A hundred ages hence our posterity will still see that wide interval untenanted—a vast and mighty era in the intellectual world, which will prove

how spacious were "the city and the temple, whose summit has reached to Heaven."

New Monthly Magazine.

TO A ROSE.

THE THOUGHT FROM THE ITALIAN.

Queen of Flora's emerald bowers,
Imperial Rose, thou flower of flowers,
Wave thy moss-enwreathen stem,
Wave thy dewy diadem;
Thy crimson luxury unfold,
And drink the sunny blaze of gold.

O'er the Zephyr, sportive minion,
Spreads the blue, aurelian pinion.
Now in love's low whispers winging,
Now in giddy fondness clinging,
With all a lover's warmth he woos thee,
With all a lover's wiles pursues thee.

And thou wilt yield, and thou wilt give
The sigh that none can breathe and live.
Like lovelier things, deluded flower,
Thy date is short; the very hour
That sees thee flourish, sees thee fade;
Thy blush, thy being, all a shade.
Yet, flower, I'll lay thee on a shrine,
That makes thy very death divine.

Couch'd on a bed of living snows,
Then breathe thy last, too happy rose!
Sweet Queen, thou'lt die upon a throne,
Where even thy sweetness is outdone;
Young weeper, thou shalt close thine eyes
Beside the gates of Paradise.

On my Idalia's bosom, thou,
Beneath the lustres of her brow,
Like pilgrims, all their sorrows past,
On Heaven their dying glances cast,
Thy crimson beauty shalt recline,
Oh, that thy rapturous fate were mine!

Blackwood's Magazine.

NEW BOOKS.

LIVES OF SCOTTISH WORTHIES, VOL. II., [Or the 34th volume of the *Family Library*, is rife with interesting details of the proudest areas of Scottish history; but more especially of the chivalric courses of Robert Bruce and James the First. We quote half-a-dozen vividly written pages, from the former, describing the memorable Siege of Berwick, in 1319.]

Considering the importance of Berwick, and the care and expense with which it had been fortified by the king, it was natural that any attempt against it should be viewed with much interest; and when it was known that the son-in-law of Bruce,—a young warrior, whose high rank was rendered more conspicuous by the services he had already rendered to the country,—had been selected as its governor, and that the whole army of England, headed by king Edward, and under the command of the flower of the nobility, had invested it by sea and land, the intense interest with which the siege was watched by both countries may be easily imagined. It concluded, however, in the complete triumph of the steward, and the repulse of the English army; yet not before every device then known in the rude engineering of the times had been essayed by the besiegers, and effectually baffled by the ingenuity and persevering courage of the enemy. After their earthen mounds had been completed, the English, on St. Mary's eve, made a simultaneous assault both by land and by sea. Whilst their force, led by the bravest of their captains, and carrying with them, besides their usual offensive arms, the ladders, crows, pick-axes, and other assistances for an escalade, rushed onwards to the walls with the sound of their trumpets, and the display of innumerable banners, a large vessel, prepared for the purpose, was towed towards the town from the mouth of the river. She was filled with armed soldiers, a party of whom were placed in her boat drawn up mid-mast high; whilst to the bow of the boat was fixed a species of drawbridge, which it was intended to drop upon the wall, and thus afford a passage from the vessel into the town. Yet these complicated preparations failed of success, although seconded by the greatest gallantry; and the English, after being baffled in every attempt to fix their ladders and maintain themselves upon the walls, were compelled to retire, leaving their vessel to be burnt by the Scots, who slew many of her crew, and made prisoner the engineer who superintended and directed the attack.

This unsuccessful attack was, after five days' active preparation, followed by another still more desperate, in which the besiegers made use of a huge machine moving upon wheels, and including several platforms or stages, which held various parties of armed soldiers, who were defended by a strong roofing of boards and hides, beneath which they could work their battering-rams with impunity. To co-operate with this unwieldy and bulky instrument, which, from its shape and covering, they called a "sow," movable scaffolds had been constructed, of such a height as to overtop the walls, from which they proposed to storm the town; and, instead of a single vessel, as on the former occasion, a squadron of ships, with their top castles manned by picked bodies of archers, and their armed boats slung mast high, were ready to sail in with the tide, and anchor beneath the walls. Aware of these great preparations, the Scots, under the encouragement and direction of their governor, laboured incessantly to be in a situation to render them unavailing. By Crab, the Flemish engineer, machines similar to the Roman catapult, moving on wheels, and of enormous strength and dimensions, were constructed and placed on the walls at the spot where it was expected the sow would make its approach. In addition to this, they fixed a crane upon the rampart, armed with iron chains and grappling hooks, and large masses of combustibles and fire-faggots, shaped like tuns, and composed of pitch and flax, bound strongly together with tar ropes, were piled up in readiness for the attack. At different intervals on the walls were fixed the espringalds for the discharge of their heavy darts, which carried on their barbed points little bundles of flaming tow dipped in oil or sulphur; the ramparts were lined by the archers, spearmen, and crossbows; and to each leader was assigned a certain station, to which he could repair on a moment's warning.

Having inspected his whole works, the steward cheerfully and confidently awaited the attack; to which the English moved forward in great strength, and led by the king in person, on the 13th of September. Irritated by their late repulse, and animated by the presence of their nobility, the different squadrons rushed forward with an impetuosity which at first defied all efforts to repel them; so that the ladders were fixed, the ditch filled up by fascines, and the ramparts attacked with an impetuous valour which promised to carry all before it. But the Scots, who knew their own strength, allowed this ebullition of gallantry to expend itself; and, after a short interval advanced with levelled spears in close array, and with a weight and resolution which effectually checked the enemy. Considerable ground, however, had been gained in the first assault; and the battle was maintained, from sunrise till noon, with excessive

obstinacy on both sides; but it at last concluded in favour of the resolution and endurance of the Scots, who repulsed the enemy on every quarter, and cleared their ramparts of their assailants. At this moment, by Edward's orders, the sow began its advance towards the walls; and the cran, or catapult, armed with a mass of rock, was seen straining its timbers, and taking its aim against the approaching monster. On the first discharge the stone flew far beyond; and, as its conductors hurried forward the immense machine, the second missile fell short of it. A third block of granite was now got ready, and an English engineer who had been taken prisoner was commanded, on pain of death, to direct the aim; whilst the sow was moving forward with a rapidity which in a few seconds must have brought it to the foot of the walls. All gazed on for an instant in breathless suspense,—but only for an instant. The catapult was discharged,—a loud booming noise in the air accompanied the progress of its deadly projectile,—and, in a moment afterwards, a tremendous crash, mingled with the shrieks of the victims and the shouts of the soldiers from the walls, declared the destruction of the huge machine. It had been hit so truly, that the stone passed through the roofs, shivering its timbers into a thousand pieces; and crushing and mangling in a frightful manner the unhappy soldiers who manned its different platforms. As those amongst them who escaped rushed out from its broken fragments, the Scottish soldiers, imitating the witticism of black Agnis at the siege of Dunbar, shouted out that the English sow had farrowed. Crab now cast his chains and grappling-hooks over the ruins of the machine, and, dragging it nearer the walls, poured down his combustibles in such quantity, that it was soon consumed to ashes. The complete failure in this land attack seems to have cast a damp over the naval operations; and, although the ships attempted to move on to the walls at flood-tide, they were driven back without difficulty; whilst a last effort to enter the city by burning the gate of St. Mary's was repulsed by the steward in person. It was now near night-fall; and, foiled on every side, the English entirely withdrew from the assault.

NUMISMATICS.

[Addison, in commenting on the Usefulness of Ancient Medals, says, "A series of an Emperor's Coins is his life digested into Annals." Who shall, therefore, gainsay the utility of *A Numismatic Manual, or Guide to the Study of Coins*. The author, Mr. John Y. Akerman, does not intend his volume exclusively for the use of the experienced medallist, so that much popular

interest may be expected in its pages. The title bespeaks its contents, but we quote a few brief extracts relating to rare English coins.]

Ecclesiastic Money.—This money was coined by prelates prior to the Norman Conquest. Of these there are pennies of Jænbearht, archbishop of Canterbury, with the reverse of Offa, king of Mercia, Aethileard, Wulfred, Ceolnoth, Plegmund, and Ethered. They are all extremely rare, excepting those of Ceolnoth, which are not so rare as the others. Besides these there are pennies of St. Martin, coined at Lincoln, and St. Peter's pennies, struck at York, which are supposed to be as old as the time of the Heptarchy. Those of St. Edmund, coined at Bury, are prior to the Norman Conquest. The pennies of St. Paul are, it would seem, by the cross and pellets on the reverse, not older than the reign of Henry III.

All Stephen's money is very scarce, and one or two types are exceedingly rare. At a sale in London, in 1827, the penny of Stephen with the horseman's mace, brought thirteen pounds. His coins are generally very rude and illegible. This king coined pennies only.

The groat of Edward I. is of the first rarity.¹⁰ The pennies of Hadleigh, Chester, and Kingston, are scarce; the other pennies are extremely common, and scarcely a year passes without a discovery of new hoards. The half-pennies and farthings are somewhat scarce. From this time to the reign of Henry VII., the English coins bear a great resemblance to each other.

Edward IV.—The groats common, except those of Norwich and Coventry, spelled "Norwic" and "Covetre." The half-groat and halfpenny scarce, the penny and farthing rare. The Bristol penny is extremely rare.

Richard III.—All this king's coins are very rare, except the groat, which is less rare than the others, some groats having lately been discovered. The Canterbury-penny of Richard III. CIVITAS CANTOR, supposed *unique*, sold at a public sale a short time since, for seven pounds ten shillings. The Durham penny of the same king brought four guineas.

Henry VII.—Folkes, in his *Table of English Silver Coins*, after describing the various pieces coined by Henry VII., says, "We may further in this place take notice of a very uncommon and singular coin, charged with the royal arms, but without a name. The arms are surmounted with an arched crown, and placed

between a *fleur-de-lis* and a rose, legend DOMINE-SALVVM. FAC. REGEM; on the other side is *fleur-de-lis* and a lion of England, and an arched crown between them above, and a rose below, with this inscription, MANA. TECKEL. PHARES. 1494. An English lion also for a mint mark. It is, by the make and size, a French gross, and is supposed to have been coined by the Duchess of Burgundy, for Perkin Warbeck, when he set out to invade England." There are also half-groats of this coinage, with the same date, one of which brought *twenty guineas* at a sale in London in 1827.

Milled Money.—The artist first employed on the milled money of England was a Frenchman, named Philip Mestrelle, who was executed at Tyburn, on the 27th of January, 1569, having been found guilty of making counterfeit money.

Charles I.—The obsidional, or *siege pieces*, struck by the partizans of this monarch during the civil wars, are extremely interesting, and, with the exception of those coined at Newark, are all rare. They may be known by their shape from every other English coin, as well as by their legends. Those of Newark are of a diamond or lozenge form, some are octangular, and others of a shape that would puzzle a geometrician. Some have the rude representation of a castle; others, a crown; and many have the initials, C.R., and the legend DVM. SPIRO. SPERO.

Oliver Cromwell.—The coins of Oliver were the production of the inimitable Simon, whose works are to this day admired and prized. Some have doubted whether they ever were in circulation, but it is now pretty generally allowed that they were.

Charles II.—The milled money of this king is of a very different style, and has the head laureated. All the pieces of this coinage are common. To the eternal disgrace of Charles, he encouraged an artist whom he had brought over from Antwerp, and gave the preference to his works before those of Simon, who produced in the year 1663, a pattern crown of most extraordinary workmanship, *on the edge of which* was the following petition in two lines:

"THOMAS SIMON *most humbly prays your MAJESTY to compare this his tryal-piece with the Dutch, and if more truly drawn and embossed, more gracefully ordered, and more accurately engraven, to relieve him.*"

To any one but the heartless profligate whose portrait occupied the obverse of the medal, this appeal would have been irresistible, but it does not appear that the unfortunate artist was relieved. He probably died of grief and disappointment at the unjust preference shown to his rival.

James II.—The base money struck by James the Second, in Ireland, in 1689 and 1690, is common, except the crown of white metal, with the figure of James on horseback. Some of his half-crowns and shillings were struck of metal, the produce of old cannon, which were melted down for the purpose, and are in consequence termed "gun money."

Anne's Farthing.—The common current farthing of Anne is scarce, but scarcer with the broad rim. The patterns of 1713 and 1714 are rare, but those with the reverse of Britannia under a kind of arch, or with Peace in a car drawn by two horses, and the legend PAX MISSA PER ORBEM, are the scarcest of all.

At a public sale of the coins of the late Mr. Dimsdale, the banker, the Oxford crown with the city under the horse, was knocked down at sixty-nine pounds. At the same time the rial of Mary brought sixty-three pounds, and the rial of Elizabeth twenty-one pounds ten shillings.

A friend of the author is of opinion, that the coins of Henry VII., with the head *in profile*, are the first English money bearing a likeness of the sovereign.

[The work is illustrated with, several lithographic *fac similia* of coins; and the vignette is from a very beautiful gold coin of Hiero II. of Syracuse, in the possession of Mr. Till, of Great Russell-street, Covent-garden. This morsel of antiquity, not larger than one's little finger nail, must be upwards of *two thousand* years old!]

THE GATHERER.

The Red Sea.—The water of the Red Sea is so very clear, that Mr. Buckingham read on the wooden stock of an anchor the name of the ship at the depth of 25 fathoms (150 feet).

T. GILL.

Curious Appeal.—Philip, Alexander's father, gave sentence against a prisoner at a time he was drowsy, and seemed to give small attention. The prisoner, after sentence was pronounced, said, I appeal: the king; somewhat stirred, said, To whom do you appeal? The prisoner answered, From Philip, when he gave *no ear*, to Philip, when he shall give ear.—*Bacon.*

An Emperor's Crown kicked off his head by the Pope.—Pope Celestine III. kicked the Emperor Henry IV.'s crown off his head, while kneeling, to show his prerogative of making and unmaking kings.

T. GILL.

THE LATE SIR. WALTER SCOTT, BART.

Instead of the "Brief Memoir," announced in our last, we intend to publish with our next number, a *Supplementary Sheet*, containing

AN ILLUSTRATED MEMOIR OF THE LATE SIR WALTER SCOTT, BART.

With Anecdotes of his Life and Works, Characteristics, Tributes to his Memory, from accredited sources, and interspersed with Original

Observations: with

FIVE ENGRAVINGS, Price Twopence.

Footnote 1: [\(return\)](#) Published by Messrs. Moon, Boys and Graves Booksellers, Pall Mall.

Footnote 2: [\(return\)](#) Mr. McCreery left Liverpool to reside in London, he died a short time since of cholera, at Paris.

Footnote 3: [\(return\)](#) Milner's Winchester, vol. ii. p. 141.

Footnote 4: [\(return\)](#) Life of Wykeham. By Allan Cunningham—in the *Family Library*. The reference to the "*four masters*" is evidently an error.

Footnote 5: [\(return\)](#) Beauties of England and Wales, vol. vi. p. 108, Hants. Mr. Cunningham states these additions to have been made by Wykeham. We shall presently come to the details of Beaufort's additions to the building.

Footnote 6: [\(return\)](#) A zealous Correspondent, *P.Q.*, whose contribution appears in the next page, describes this gateway as resembling St. John's Gate, Clerkenwell, which Mr. Malcom thinks "one of the most perfect remains of monastic buildings in London." It consists of one capacious arch, with an arched mullioned window in the centre above it; and is flanked by two square towers. From this place issued the early numbers of the *Gentleman's Magazine*; and a wood-cut of the building appears to this day on the wrapper of that valuable work, which, for knowledge and utility, is as superior to the Magazine frippery of the present day as Michael Angelo to John Nash.

Footnote 7: [\(return\)](#) Milner's Winchester, vol. ii. p. 146.

Footnote 8: [\(return\)](#) The present Earl succeeded to the title on the death of his cousin, Francis, the learned Chancellor of the University of the Ionian Islands, founded by himself, and which he richly endowed with a noble bequest and a splendid library. His Lordship is Rector of St. Mary's, Southampton, Old and New Abresford and Medstead, in Hampshire, a Prebendary of Winchester, and Master of St. Cross, Hospital.

Among many famous men who have presided over the Hospital, was Colonel John Lisle, of Moyles Court, Regicide, and M.P. for the City of Winchester.

Footnote 9: [\(return\)](#) From a paper in *The Crypt*, an antiquarian journal, printed at Ringwood, Hants, in the year 1827. The writer observes that Dr. Milner has uniformly applied the term *Saxon* to the circular arches in this structure, as well as to similar specimens; but subsequent topographers have arrived at the more probable conclusion, that very slight remains, if any, now exist of ecclesiastical edifices by the Saxons.

Footnote 10: [\(return\)](#) The groat of Edward I. sold for five and a half guineas, at a public sale in London, in March, 1827. It is quite evident that the effigies of the

English monarchs on their coins are not *likenesses*, until the time of Henry VIII. whatever the Ingenious may say to the contrary. Some have supposed that the rude figures on the Saxon coins use likenesses, but the idea is ridiculous. Folkes, in his "Table of English Silver Coins," remarks that the Kings of England are represented *bearded* on their great seals, but always *smooth-faced* on their coins.

Printed and published by J. LIMBIRD, 143, Strand, (near Somerset House,) London, sold by ERNEST FLEISCHER, 626, New Market, Leipsic; G.G. BENNIS, 55, Rue Neuve, St. Augustin, Paris; and by all Newsmen and Booksellers.

*** END OF THE PROJECT GUTENBERG EBOOK THE MIRROR OF
LITERATURE, AMUSEMENT, AND INSTRUCTION. VOLUME 20, NO.
569, OCTOBER 6, 1832 ***

Updated editions will replace the previous one—the old editions will be renamed.

Creating the works from print editions not protected by U.S. copyright law means that no one owns a United States copyright in these works, so the Foundation (and you!) can copy and distribute it in the United States without permission and without paying copyright royalties. Special rules, set forth in the General Terms of Use part of this license, apply to copying and distributing Project Gutenberg™ electronic works to protect the PROJECT GUTENBERG™ concept and trademark. Project Gutenberg is a registered trademark, and may not be used if you charge for an eBook, except by following the terms of the trademark license, including paying royalties for use of the Project Gutenberg trademark. If you do not charge anything for copies of this eBook, complying with the trademark license is very easy. You may use this eBook for nearly any purpose such as creation of derivative works, reports, performances and research. Project Gutenberg eBooks may be modified and printed and given away—you may do practically ANYTHING in the United States with eBooks not protected by U.S. copyright law. Redistribution is subject to the trademark license, especially commercial redistribution.

START: FULL LICENSE

THE FULL PROJECT GUTENBERG™ LICENSE

PLEASE READ THIS BEFORE YOU DISTRIBUTE OR USE THIS WORK

To protect the Project Gutenberg™ mission of promoting the free distribution of electronic works, by using or distributing this work (or any other work associated in any way with the phrase “Project Gutenberg”), you agree to comply with all the terms of the Full Project Gutenberg License available with this file or online at www.gutenberg.org/license.

Section 1. General Terms of Use and Redistributing Project Gutenberg electronic works

1.A. By reading or using any part of this Project Gutenberg electronic work, you indicate that you have read, understand, agree to and accept all the terms of this license and intellectual property (trademark/copyright) agreement. If you do not agree to abide by all the terms of this agreement, you must cease using and return or destroy all copies of Project Gutenberg electronic works in your possession. If you paid a fee for obtaining a copy of or access to a Project Gutenberg electronic work and you do not agree to be bound by the terms of this agreement, you may obtain a refund from the person or entity to whom you paid the fee as set forth in paragraph 1.E.8.

1.B. “Project Gutenberg” is a registered trademark. It may only be used on or associated in any way with an electronic work by people who agree to be bound by the terms of this agreement. There are a few things that you can do with most Project Gutenberg electronic works even without complying with the full terms of this agreement. See paragraph 1.C below. There are a lot of things you can do with Project Gutenberg electronic works if you follow the terms of this agreement and help preserve free future access to Project Gutenberg electronic works. See paragraph 1.E below.

1.C. The Project Gutenberg Literary Archive Foundation (“the Foundation” or PGLAF), owns a compilation copyright in the

collection of Project Gutenberg electronic works. Nearly all the individual works in the collection are in the public domain in the United States. If an individual work is unprotected by copyright law in the United States and you are located in the United States, we do not claim a right to prevent you from copying, distributing, performing, displaying or creating derivative works based on the work as long as all references to Project Gutenberg are removed. Of course, we hope that you will support the Project Gutenberg mission of promoting free access to electronic works by freely sharing Project Gutenberg works in compliance with the terms of this agreement for keeping the Project Gutenberg name associated with the work. You can easily comply with the terms of this agreement by keeping this work in the same format with its attached full Project Gutenberg License when you share it without charge with others.

1.D. The copyright laws of the place where you are located also govern what you can do with this work. Copyright laws in most countries are in a constant state of change. If you are outside the United States, check the laws of your country in addition to the terms of this agreement before downloading, copying, displaying, performing, distributing or creating derivative works based on this work or any other Project Gutenberg work. The Foundation makes no representations concerning the copyright status of any work in any country other than the United States.

1.E. Unless you have removed all references to Project Gutenberg:

1.E.1. The following sentence, with active links to, or other immediate access to, the full Project Gutenberg License must appear prominently whenever any copy of a Project Gutenberg work (any work on which the phrase “Project Gutenberg” appears, or with which the phrase “Project Gutenberg” is associated) is accessed, displayed, performed, viewed, copied or distributed:

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg™ License included with

this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

1.E.2. If an individual Project Gutenberg electronic work is derived from texts not protected by U.S. copyright law (does not contain a notice indicating that it is posted with permission of the copyright holder), the work can be copied and distributed to anyone in the United States without paying any fees or charges. If you are redistributing or providing access to a work with the phrase “Project Gutenberg” associated with or appearing on the work, you must comply either with the requirements of paragraphs 1.E.1 through 1.E.7 or obtain permission for the use of the work and the Project Gutenberg trademark as set forth in paragraphs 1.E.8 or 1.E.9.

1.E.3. If an individual Project Gutenberg electronic work is posted with the permission of the copyright holder, your use and distribution must comply with both paragraphs 1.E.1 through 1.E.7 and any additional terms imposed by the copyright holder. Additional terms will be linked to the Project Gutenberg License for all works posted with the permission of the copyright holder found at the beginning of this work.

1.E.4. Do not unlink or detach or remove the full Project Gutenberg License terms from this work, or any files containing a part of this work or any other work associated with Project Gutenberg.

1.E.5. Do not copy, display, perform, distribute or redistribute this electronic work, or any part of this electronic work, without prominently displaying the sentence set forth in paragraph 1.E.1 with active links or immediate access to the full terms of the Project Gutenberg License.

1.E.6. You may convert to and distribute this work in any binary, compressed, marked up, nonproprietary or proprietary form, including any word processing or hypertext form. However, if you provide access to or distribute copies of a Project Gutenberg work in a format other than “Plain Vanilla ASCII” or other format used in the official

version posted on the official Project Gutenberg website (www.gutenberg.org), you must, at no additional cost, fee or expense to the user, provide a copy, a means of exporting a copy, or a means of obtaining a copy upon request, of the work in its original “Plain Vanilla ASCII” or other form. Any alternate format must include the full Project Gutenberg License as specified in paragraph 1.E.1.

1.E.7. Do not charge a fee for access to, viewing, displaying, performing, copying or distributing any Project Gutenberg works unless you comply with paragraph 1.E.8 or 1.E.9.

1.E.8. You may charge a reasonable fee for copies of or providing access to or distributing Project Gutenberg electronic works provided that:

- You pay a royalty fee of 20% of the gross profits you derive from the use of Project Gutenberg works calculated using the method you already use to calculate your applicable taxes. The fee is owed to the owner of the Project Gutenberg trademark, but he has agreed to donate royalties under this paragraph to the Project Gutenberg Literary Archive Foundation. Royalty payments must be paid within 60 days following each date on which you prepare (or are legally required to prepare) your periodic tax returns. Royalty payments should be clearly marked as such and sent to the Project Gutenberg Literary Archive Foundation at the address specified in Section 4, “Information about donations to the Project Gutenberg Literary Archive Foundation.”
- You provide a full refund of any money paid by a user who notifies you in writing (or by e-mail) within 30 days of receipt that s/he does not agree to the terms of the full Project Gutenberg™ License. You must require such a user to return or destroy all copies of the works possessed in a physical medium and discontinue all use of and all access to other copies of Project Gutenberg™ works.
- You provide, in accordance with paragraph 1.F.3, a full refund of any money paid for a work or a replacement copy, if a defect in the electronic work is discovered and reported to you within 90 days of receipt of the work.

- You comply with all other terms of this agreement for free distribution of Project Gutenberg™ works.

1.E.9. If you wish to charge a fee or distribute a Project Gutenberg™ electronic work or group of works on different terms than are set forth in this agreement, you must obtain permission in writing from the Project Gutenberg Literary Archive Foundation, the manager of the Project Gutenberg™ trademark. Contact the Foundation as set forth in Section 3 below.

1.F.

1.F.1. Project Gutenberg volunteers and employees expend considerable effort to identify, do copyright research on, transcribe and proofread works not protected by U.S. copyright law in creating the Project Gutenberg™ collection. Despite these efforts, Project Gutenberg™ electronic works, and the medium on which they may be stored, may contain “Defects,” such as, but not limited to, incomplete, inaccurate or corrupt data, transcription errors, a copyright or other intellectual property infringement, a defective or damaged disk or other medium, a computer virus, or computer codes that damage or cannot be read by your equipment.

1.F.2. LIMITED WARRANTY, DISCLAIMER OF DAMAGES - Except for the “Right of Replacement or Refund” described in paragraph 1.F.3, the Project Gutenberg Literary Archive Foundation, the owner of the Project Gutenberg™ trademark, and any other party distributing a Project Gutenberg™ electronic work under this agreement, disclaim all liability to you for damages, costs and expenses, including legal fees. YOU AGREE THAT YOU HAVE NO REMEDIES FOR NEGLIGENCE, STRICT LIABILITY, BREACH OF WARRANTY OR BREACH OF CONTRACT EXCEPT THOSE PROVIDED IN PARAGRAPH 1.F.3. YOU AGREE THAT THE FOUNDATION, THE TRADEMARK OWNER, AND ANY DISTRIBUTOR UNDER THIS AGREEMENT WILL NOT BE LIABLE TO YOU FOR ACTUAL, DIRECT, INDIRECT, CONSEQUENTIAL, PUNITIVE OR INCIDENTAL DAMAGES

EVEN IF YOU GIVE NOTICE OF THE POSSIBILITY OF SUCH DAMAGE.

1.F.3. LIMITED RIGHT OF REPLACEMENT OR REFUND - If you discover a defect in this electronic work within 90 days of receiving it, you can receive a refund of the money (if any) you paid for it by sending a written explanation to the person you received the work from. If you received the work on a physical medium, you must return the medium with your written explanation. The person or entity that provided you with the defective work may elect to provide a replacement copy in lieu of a refund. If you received the work electronically, the person or entity providing it to you may choose to give you a second opportunity to receive the work electronically in lieu of a refund. If the second copy is also defective, you may demand a refund in writing without further opportunities to fix the problem.

1.F.4. Except for the limited right of replacement or refund set forth in paragraph 1.F.3, this work is provided to you 'AS-IS', WITH NO OTHER WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY OR FITNESS FOR ANY PURPOSE.

1.F.5. Some states do not allow disclaimers of certain implied warranties or the exclusion or limitation of certain types of damages. If any disclaimer or limitation set forth in this agreement violates the law of the state applicable to this agreement, the agreement shall be interpreted to make the maximum disclaimer or limitation permitted by the applicable state law. The invalidity or unenforceability of any provision of this agreement shall not void the remaining provisions.

1.F.6. INDEMNITY - You agree to indemnify and hold the Foundation, the trademark owner, any agent or employee of the Foundation, anyone providing copies of Project Gutenberg™ electronic works in accordance with this agreement, and any volunteers associated with the production, promotion and distribution of Project Gutenberg™ electronic works, harmless from all liability, costs and expenses, including legal fees, that arise directly or indirectly from any of the following which you do or cause to occur: (a)

distribution of this or any Project Gutenberg work, (b) alteration, modification, or additions or deletions to any Project Gutenberg work, and (c) any Defect you cause.

Section 2. Information about the Mission of Project Gutenberg

Project Gutenberg is synonymous with the free distribution of electronic works in formats readable by the widest variety of computers including obsolete, old, middle-aged and new computers. It exists because of the efforts of hundreds of volunteers and donations from people in all walks of life.

Volunteers and financial support to provide volunteers with the assistance they need are critical to reaching Project Gutenberg's goals and ensuring that the Project Gutenberg collection will remain freely available for generations to come. In 2001, the Project Gutenberg Literary Archive Foundation was created to provide a secure and permanent future for Project Gutenberg and future generations. To learn more about the Project Gutenberg Literary Archive Foundation and how your efforts and donations can help, see Sections 3 and 4 and the Foundation information page at www.gutenberg.org.

Section 3. Information about the Project Gutenberg Literary Archive Foundation

The Project Gutenberg Literary Archive Foundation is a non-profit 501(c)(3) educational corporation organized under the laws of the state of Mississippi and granted tax exempt status by the Internal Revenue Service. The Foundation's EIN or federal tax identification number is 64-6221541. Contributions to the Project Gutenberg Literary Archive Foundation are tax deductible to the full extent permitted by U.S. federal laws and your state's laws.

The Foundation's business office is located at 41 Watchung Plaza #516, Montclair NJ 07042, USA, +1 (862) 621-9288. Email contact

links and up to date contact information can be found at the Foundation's website and official page at www.gutenberg.org/contact

Section 4. Information about Donations to the Project Gutenberg Literary Archive Foundation

Project Gutenberg™ depends upon and cannot survive without widespread public support and donations to carry out its mission of increasing the number of public domain and licensed works that can be freely distributed in machine-readable form accessible by the widest array of equipment including outdated equipment. Many small donations (\$1 to \$5,000) are particularly important to maintaining tax exempt status with the IRS.

The Foundation is committed to complying with the laws regulating charities and charitable donations in all 50 states of the United States. Compliance requirements are not uniform and it takes a considerable effort, much paperwork and many fees to meet and keep up with these requirements. We do not solicit donations in locations where we have not received written confirmation of compliance. To SEND DONATIONS or determine the status of compliance for any particular state visit www.gutenberg.org/donate.

While we cannot and do not solicit contributions from states where we have not met the solicitation requirements, we know of no prohibition against accepting unsolicited donations from donors in such states who approach us with offers to donate.

International donations are gratefully accepted, but we cannot make any statements concerning tax treatment of donations received from outside the United States. U.S. laws alone swamp our small staff.

Please check the Project Gutenberg web pages for current donation methods and addresses. Donations are accepted in a number of other ways including checks, online payments and credit card donations. To donate, please visit: www.gutenberg.org/donate.

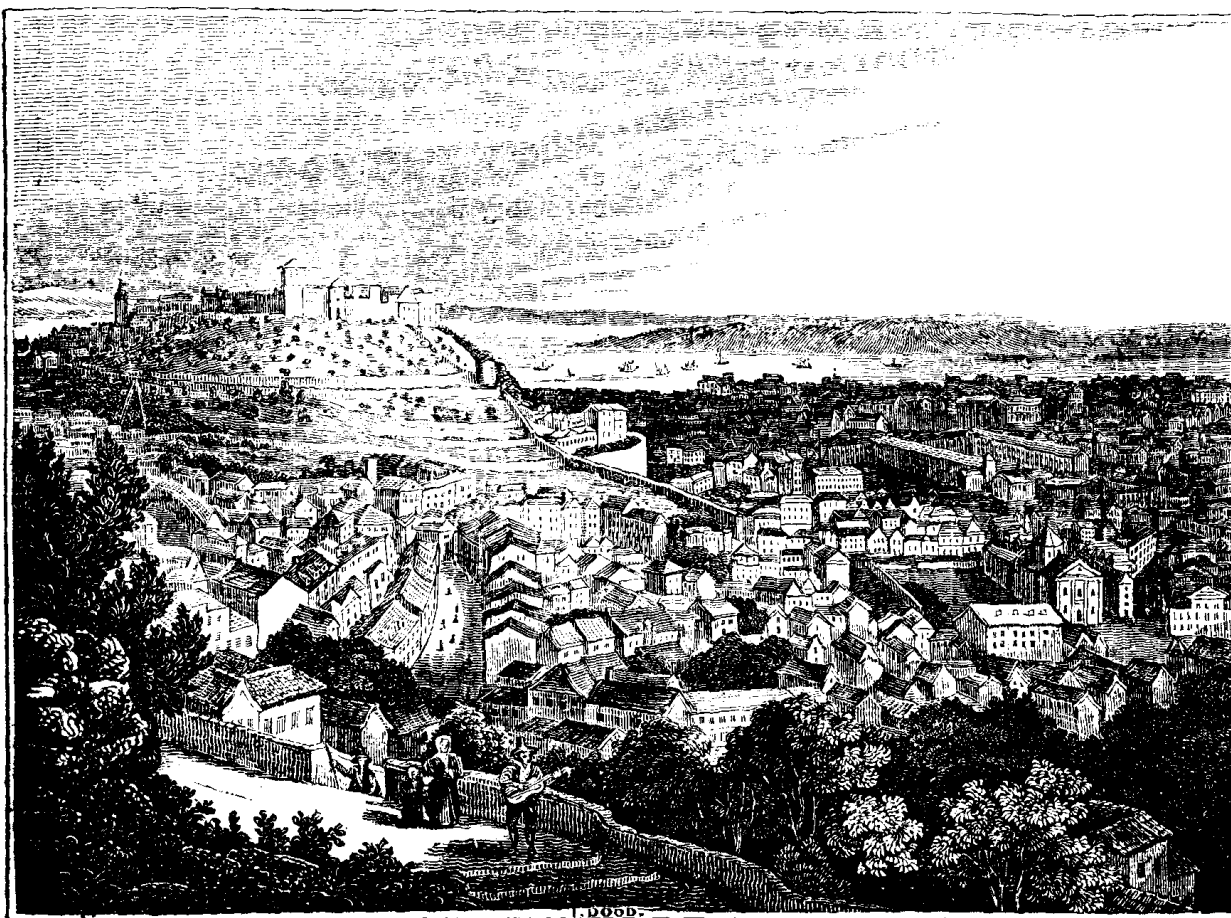
Section 5. General Information About Project Gutenberg electronic works

Professor Michael S. Hart was the originator of the Project Gutenberg concept of a library of electronic works that could be freely shared with anyone. For forty years, he produced and distributed Project Gutenberg eBooks with only a loose network of volunteer support.

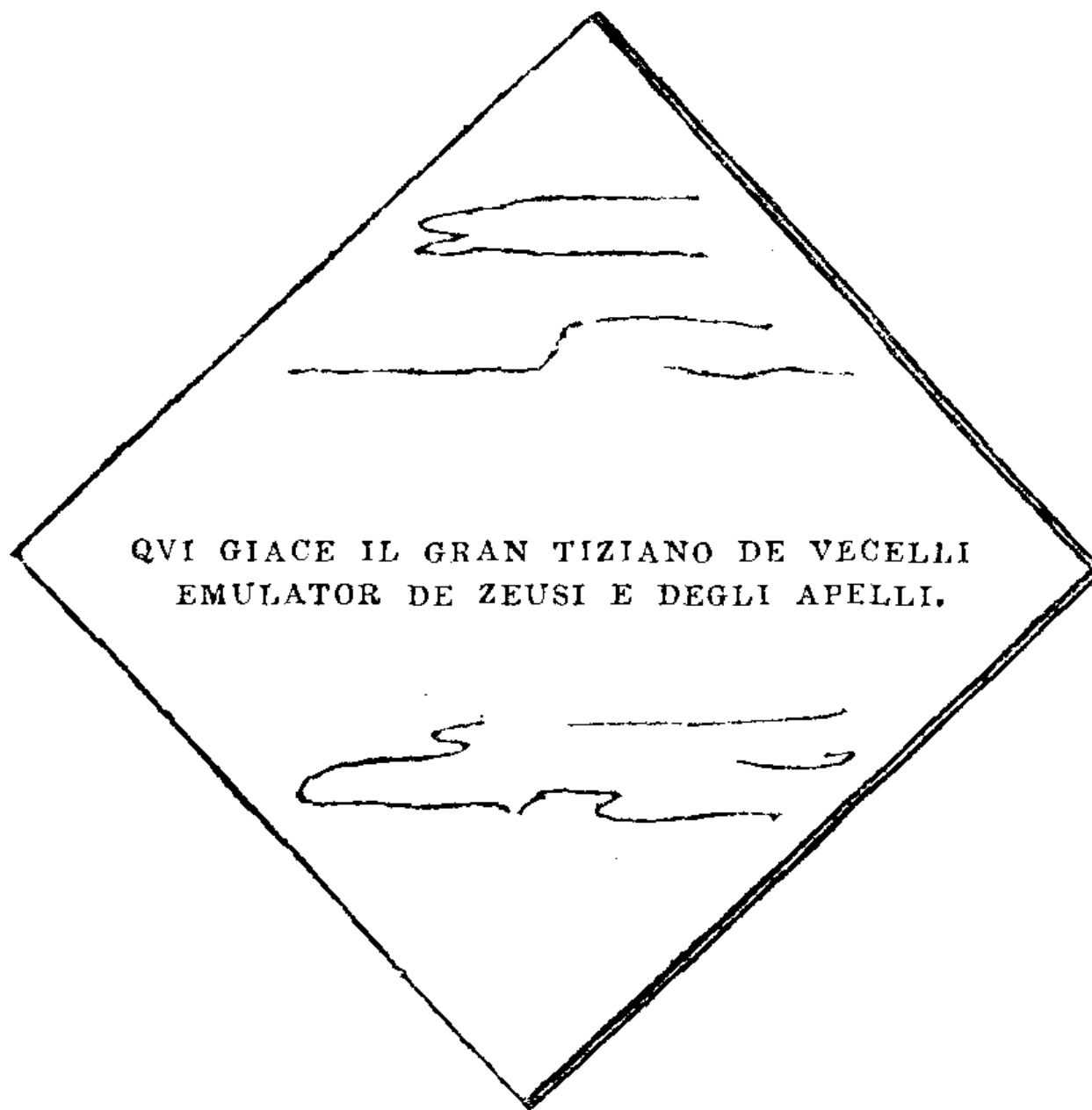
Project Gutenberg eBooks are often created from several printed editions, all of which are confirmed as not protected by copyright in the U.S. unless a copyright notice is included. Thus, we do not necessarily keep eBooks in compliance with any particular paper edition.

Most people start at our website which has the main PG search facility: www.gutenberg.org.

This website includes information about Project Gutenberg, including how to make donations to the Project Gutenberg Literary Archive Foundation, how to help produce our new eBooks, and how to subscribe to our email newsletter to hear about new eBooks.



[back](#)



QVI GIACE IL GRAN TIZIANO DE VECELLI
EMULATOR DE ZEUSI E DEGLI APELLI.

[back](#)



[back](#)